

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (hereinafter referred to as the "Agreement") is made and entered into as (Effective Date),

BY AND BETWEEN:

If Entity/Company: [Entity / Party A Name], a company duly organized and existing under the laws of [Country], with its registered office at [Address], acting through its authorized representative [Name, Title] (hereinafter referred to as "Party A").

If Individual Person: [Full Name], residing at [Address], (hereinafter referred to as "Party A").

AND

[Party B Name] ... (same structure as above, depending on whether entity or person).

Hereafter each referred individually as a 'Party' and collectively as 'Parties'.

WHEREAS the Parties intend to engage in discussions and activities related to [brief description of the purpose, e.g., developing a product, service collaboration, etc.], and in the course of such discussions and activities, it is anticipated that the Parties may disclose certain confidential and proprietary information to each other.

NOW, THEREFORE, in consideration of the promises and mutual covenants contained herein, the Parties agree as follows:

1. Definition of Confidential Information

For the purposes of this Agreement, "Confidential Information" means any technical, business, financial, or other information disclosed... whether oral, written, or electronic... marked confidential or reasonably understood to be confidential provided by one Party to another Party that is marked as confidential or that ought to reasonably be understood to be confidential given the nature of the information and the circumstances of disclosure.

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2. Obligations of Confidentiality

2.1. Each Party agrees to:

- (a) Maintain the confidentiality of the Confidential Information and not disclose it to any third party without the prior written consent of the disclosing Party;
- (b) Use the Confidential Information solely for the purpose of [describe purpose];
- (c) Take all reasonable steps to protect the confidentiality of the Confidential Information, which steps shall be at least as protective as those the Party takes to protect its own confidential information.

3. Exclusions from Confidential Information

Confidential Information does not include information that:

- a) Is or becomes publicly known through no fault of the Receiving Party;
- b) Is received from a third party without breach of any obligation of confidentiality;
- c) Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information;
- d) Is required to be disclosed by law or by the order of a competent authority.

4. Term

This Agreement shall commence on the Effective Date and shall continue in effect for a period of [Insert Period, e.g., two (2) years] from the date of disclosure of the Confidential Information or until such time as all Confidential Information disclosed hereunder ceases to be confidential, whichever occurs first.

5. No License

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Nothing in this Agreement shall be construed as granting any rights to the Receiving Party under any patent, copyright, or other intellectual property right of the Disclosing Party.

6. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising out of or in connection with this Agreement shall be subject to the jurisdiction of the courts of [Insert City].

7. Entire Agreement

This Agreement constitutes the entire understanding between the Parties regarding the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral, relating to such subject matter.

8. Amendment

This Agreement may only be amended or modified by a written agreement signed by authorized representatives of all Parties.

9. Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

10. Assignment:

Neither Party may assign any of its rights or obligations under this Agreement without the prior written consent of the other Party.

11. Miscellaneous:

This Agreement shall bind and inure to the benefit of the parties hereto and their successors and permitted assigns. This document contains the entire agreement between the parties with respect to the subject matter hereof, and neither party

shall have any obligation, express or implied by law, with respect to trade secret or proprietary information of the other party except as set forth herein. Any failure to enforce any provision of this Agreement shall not constitute a waiver thereof or of any other provision.

IN WITNESS WHEREOF, the parties have executed this Non- Disclosure Agreement as of the date first above written.

Entity/Party A Name

Authorised Signature

Name

Designation

Date

Entity/Party B Name

Authorised Signature

Name

Designation

Date

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